

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No. _____

-----X
STEVE RINCHERE, ROY HARRISON, JR., DAWSON
JEAN-LEGER, and MALEIK MATHENY,

Date Filed: April 2, 2013 (E-Filed)

SUMMONS

Plaintiffs,

-against-

THE CITY OF NEW YORK, MICHELLE KRALECKI, and
SCOTT DANGELO,

Pursuant to CPLR 504(3),
Plaintiffs designate Queens
County as venue based upon
where the cause of action arose.

Defendants.

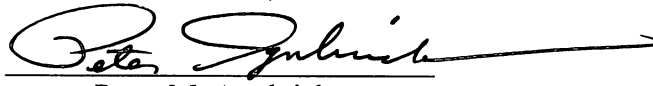
-----X
TO THE ABOVE-NAMED DEFENDANTS:

You are hereby summoned and required to serve upon Plaintiff's attorney an answer to the complaint in this action within twenty days after the service of this summons, exclusive of the day of service, or within thirty days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Great Neck, New York
April 1, 2013

Yours, etc.,

PETER M. AGULNICK, P.C.

By: 

Peter M. Agulnick

Attorneys for Plaintiffs

**STEVE RINCHERE, ROY HARRISON,
JR., DAWSON JEAN-LEGER, and
MALEIK MATHENY**

8 Bond Street, Suite 303
Great Neck, New York 11021-2426
(212) 571-2266
(Our File # 362-001)

Defendants' Addresses:

THE CITY OF NEW YORK, Defendant
C/O Michael A. Cardozo, Esq.
NYC Law Dept.
100 Church Street, 4th Floor
New York, New York 10007

MICHELLE KRALECKI, Defendant
C/O New York City Police Dept.
1 Police Plaza
New York, New York 10038

SCOTT DANGELO, Defendant
C/O New York City Police Dept.
1 Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
STEVE RINCHERE, ROY HARRISON, JR., DAWSON Index No. _____
JEAN-LEGER, and MALEIK MATHENY,

Plaintiffs,

COMPLAINT

-against-

THE CITY OF NEW YORK, MICHELLE KRALECKI, and
SCOTT DANGELO,

Defendants.

-----X

Plaintiffs, through their counsel, for their complaint, state the following upon
information and belief:

PARTIES

1. Plaintiffs are all individuals who resides in Queens County, New York
State
2. Defendant THE CITY OF NEW YORK (hereinafter "CITY") is a
municipal corporation organized under the laws of the State of New York, in and as the
City of New York.
3. Defendant MICHELLE KRALECKI is an individual whose residence is
unknown to Plaintiffs but works in Queens County, New York State.
4. Defendant SCOTT DANGELO is an individual whose residence is
unknown to Plaintiffs but works in Queens County, New York State.

5. Plaintiffs have served a notice of claim(s) upon Defendant CITY concerning the state claims listed below; however, such Notice of Claim is not required by the federal claims below.

6. On January 10, 2012 at about 12:01 AM, Plaintiffs were lawfully at 55-25 9th Place, Corona, NY (in Queens County, New York State) visiting a friend who was a lawful resident of that building.

7. On January 10, 2012, Defendants MICHELLE KRALECKI and SCOTT DANGELO were New York City Police officers (all collectively will be hereinafter referred to as "Defendant Police Officers.")

8. On January 10, 2012, while Plaintiffs, who are black, were for no reason by Defendant Police Officers.

9. A reasonable person or police officer should have known that Plaintiffs had committed no crime.

10. Defendant Police Officers had no warrant arrest Plaintiffs.

11. Defendant Police Officers otherwise had not other lawful reasons to arrest Plaintiffs.

12. Notwithstanding, Defendant Police Officers arrested and handcuffed Plaintiffs.

13. Prior to being handcuffed, Plaintiffs attempted to inform Defendant Police Officers that he had committed no crime and that they did not want be handcuffed and go to jail, but Plaintiffs went peacefully and submitted without resistance to the false arrest.

14. Upon arrival at the jail, Plaintiffs were subjected to a humiliating search and were deprived of all money and personal belongings.

15. Plaintiffs were then incarcerated in cells with criminals.

16. Plaintiffs were also subject to humiliation and suffered annoyance and inconvenience from being arrested, handcuffed, and incarcerated in jail.

17. Eventually, Plaintiffs was released from jail on or about January 12, 2012 at about 11:30 AM.

18. After being released from jail, a criminal proceeding was brought against Plaintiffs titled People of the State of New York v. Harrison, et al. in the Criminal Court of the State of New York, Queens County, under docket number 2012QN001600.

19. As a result of this criminal complaint, Plaintiffs had to appear publicly as a criminal defendant in court.

20. Because the charges in the criminal proceeding had no merit, all charges against Plaintiffs (who was a criminal defendant at the time) were outright dismissed and/or dismissed after an ACD before the case ever went to trial.

FIRST CAUSE OF ACTION

(Violation of 42 U.S.C § 1983)

21. Plaintiffs repeats and re-alleges every allegation in this complaint.

22. Defendant Police Officers intended to confine and completely confined Plaintiffs.

23. Plaintiffs were cognizant of the confinement.

24. Plaintiffs voiced objections to the confinement in which they did not consent.

25. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiffs in any way.

26. Defendant Police Officers acted under color of law as is defined in 42 U.S.C. § 1983 in confining and incarcerating Plaintiffs and in violating Plaintiffs' rights and discriminating against them and profiling them because of their races.

27. Defendant Police Officers violated Plaintiffs' civil liberties and rights under the United State Constitution, including, but not limited to, the Bill of Rights, and rights under the New York State Constitution.

28. Pursuant to 42 U.S.C. § 1983, Plaintiffs are entitled to damages from Defendant Police Officers for violations of Plaintiffs' constitutionally protected civil rights.

29. Defendant CITY has maintained a system of review of police conduct that is so untimely and cursory as to be ineffective and has a policy to permit and tolerate the unreasonable and excessive use of force and lack of discretion in making arrests by police officers.

30. The acts, omissions, systemic flaws, policies, and customs of Defendant CITY caused Defendant Police Officers to believe that the excessive and unreasonable use of force and falsely arresting individuals, such as Plaintiffs based upon, among other things, racial motives, would not be aggressively, honestly, and properly investigated, with the foreseeable result that officers are more likely to use excessive or unreasonable force and against Plaintiffs and in falsely arresting Plaintiffs and others in the future.

31. Consequently, pursuant to 42 U.S.C. § 1983, Plaintiffs are also entitled to damages from Defendant CITY for violations of Plaintiffs' constitutionally protected civil rights against.

32. Finally, all Defendants are liable for paying Plaintiffs awards of counsel fees in an amount to be determined by this court pursuant to 42 U.S.C. § 1988.

SECOND CAUSE OF ACTION

(False arrest/imprisonment)

33. Plaintiffs repeats and re-alleges every allegation in this complaint.
34. Defendant Police Officers intended to confine and completely confined Plaintiffs.
35. Plaintiffs were cognizant of the confinement.
36. Plaintiffs voiced objections to the confinement in which they did not consent.
37. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiffs.
38. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they confined and falsely arrested and imprisoned Plaintiffs.
39. Defendant CITY is, therefore, vicariously liable for falsely arresting and imprisoning Plaintiffs.
40. Thus, all Defendants are liable for falsely arresting and imprisoning Plaintiffs.

THIRD CAUSE OF ACTION

(Battery)

41. Plaintiffs repeats and re-alleges every allegation in this complaint.
42. Defendant Police Officers' acts were intentional.
43. Defendant Police Officers' conduct resulted in harmful, offensive, and

nonconsensual bodily contact with the Plaintiffs amounting to the civil tort of battery.

44. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they battered Plaintiffs.

45. Defendant CITY is, therefore, vicariously liable for the battery that Defendant police officers inflicted upon Plaintiffs.

46. Thus, all Defendants are liable for the tort of battery.

FOURTH CAUSE OF ACTION

(Negligence)

47. Plaintiffs repeat and re-allege every allegation in this complaint.

48. Defendant Police Officers had a duty to protect and not arrest citizens who commit no crime.

49. Defendant Police Officers breached that duty by failing to exercise reasonable care and judgment in determining whether to arrest Plaintiffs.

50. The actions of Defendant Police Officers caused Plaintiffs to suffer damages.

51. Consequently, Defendant Police Officers are liable for negligence.

52. Defendant Police Officers acted within the scope of their duties as police officers for Defendant CITY and in the interest of the CITY when they arrested Plaintiffs.

53. Defendant CITY is, therefore, vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as police officers.

54. Thus, all Defendants are liable for negligence.

FIFTH CAUSE OF ACTION

(Negligent Hiring and Retention)

55. Plaintiffs repeat and re-allege every allegation in this complaint.
56. Defendant CITY had a duty to hire and retain competent police officers.
57. Defendant CITY knew, or should have known, that Defendant Police Officers were unfit to be hired and retained as police officers of the New York City Police Department.
58. Defendant CITY breached its duty to hire and retain competent police officers.
59. As a result of the CITY's breach, the Plaintiffs suffered damages.
60. Thus, Defendant CITY is liable for negligent hiring and retention of Defendant police officers.

SIXTH CAUSE OF ACTION

(Defamation)

61. Plaintiffs repeats and re-alleges every allegation in this complaint.
62. Defendant Police Officers printed and/or uttered false and injurious statements concerning Plaintiffs.
63. The false statements accused Plaintiffs of having committed crime(s).
64. Defendant Police Officers published these false statements to third-parties.
65. Defendant Police Officers wrote and/or spoke the statements with malice, recklessness, negligence, and gross negligence.
66. Thus, Defendant Police Officers are liable for defamation per se.
67. Defendant Police Officers acted within the scope of their duties as police

officers for Defendant CITY and in the interest of the CITY when they defamed Plaintiffs.

68. Defendant CITY is, therefore, vicariously liable for the defamation that Defendant Police Officers committed.

69. Thus, all Defendants are liable for defamation per se.

SEVENTH CAUSE OF ACTION

(Malicious Prosecution)

70. Plaintiffs repeats and re-alleges every allegation in this complaint.

71. Defendants brought a prior criminal proceeding against Plaintiffs.

72. The prior criminal proceedings terminated in favor of Plaintiffs (where Plaintiffs were named a criminal defendant).

73. Defendant Police Officers lacked probable cause to handcuff, arrest, imprison, and prosecute Plaintiffs.

74. Defendant Police Officers had malice in prosecuting Plaintiffs in the prior criminal proceedings.

75. Defendant CITY is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as New York City police officers.

76. Thus, all Defendants are liable for malicious prosecution.

WHEREFORE, Plaintiffs demands judgment as follows:

(a) on the First Cause of Action (42 U.S.C § 1983), actual and punitive damages in the amount of \$2 million and, pursuant to 42 U.S.C. § 1988, attorney's fees against all Defendants;

(b) on the Second Cause of Action (False arrest/imprisonment), actual and punitive

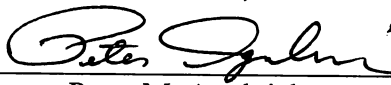
damages in the amount of \$2 million against all Defendants;

- (c) on the Third Cause of Action (Battery), actual and punitive damages in the amount of \$2 million against all Defendants;
- (d) on the Fourth Cause of Action (Negligence), actual damages in the amount of \$1 million against all Defendants;
- (e) on the Fifth Cause of Action (Negligent Hiring and Retention), actual damages in the amount of \$1 million against Defendant CITY;
- (f) on the Sixth Cause of Action (defamation), actual and punitive damages in the amount of \$2 million against Defendant CITY;
- (g) on the Seventh Cause of Action (malicious prosecution), actual and punitive damages in the amount of \$2 million; and
- (h) costs, disbursements, interest, and such other relief that is appropriate.

Dated: Great Neck, New York
 April 1, 2013

Yours, etc.,

PETER M. AGULNICK, P.C.

By: 
Peter M. Agulnick

Attorneys for Plaintiffs

**STEVE RINCHERE, ROY HARRISON,
JR., DAWSON JEAN-LEGER, and
MALEIK MATHENY**

8 Bond Street, Suite 303

Great Neck, New York 11021-2426

(212) 571-2266

(Our File # 362-001)

Index No. _____

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

STEVE RINCHERE, ROY HARRISON, JR., DAWSON JEAN-LEGER, and
MALEIK MATHENY,

Plaintiffs,

-against-

THE CITY OF NEW YORK, MICHELLE KRALECKI, and SCOTT DANGELO,

Defendants.

SUMMONS and COMPLAINT

PETER M. AGULNICK, P.C.

Attorney for Plaintiffs

**8 BOND STREET, SUITE 303
GREAT NECK, NEW YORK 11021-2426
TEL (212) 571-2266
FAX (212) 656-1645**

This office does not accept service of litigation papers by electronic means except for cases where this office has consented to the case being designated an "E-file" case and, in those instances, we still do not consent to fax service.

Pursuant to 22 NYCRR § 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: April 1, 2013

Signature: _____



Name: Peter M. Agulnick
